IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re:	)	Chapter 11
Omnis Pleasants, LLC[1]	)	Case No. 26-11169 (___)
Debtor.	)	

DEBTOR'S MOTION FOR ENTRY OF INTERIM AND FINAL ORDERS (I) AUTHORIZING THE DEBTOR TO CONTINUE PREPETITION HEDGING ARRANGEMENT AND HONOR ANY OBLIGATIONS RELATED THERETO, (II) AUTHORIZING THE DEBTOR TO ENTER INTO, AND PERFORM UNDER, POSTPETITION HEDGING ARRANGEMENTS, (III) MODIFYING THE AUTOMATIC STAY, AND (IV) GRANTING RELATED RELIEF

Omnis Pleasants, LLC d/b/a Pleasants Power Station, as debtor in possession (the "**Debtor**") in the above-captioned chapter 11 case, respectfully states the following in support of this motion (this "**Motion**"), and relies upon and incorporates by reference the *Declaration of David Hindman, as Chief Executive Officer of Omnis Pleasants, LLC, d/b/a Pleasants Power Station, in Support of Chapter 11 Petition and First Day Motions* (the "**First Day Declaration**") filed concurrently herewith:[2]

RELIEF REQUESTED

1. The Debtor seeks entry of interim and final orders (the "**Interim Order**" and "**Final Order**," respectively), substantially in the forms annexed hereto as **Exhibits A-1** and **A-2**, respectively, (i) authorizing, but not directing, the Debtor, in its sole discretion, to continue the Prepetition Swap Arrangement (as defined below) and honor any obligations related thereto,

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[1] The last four digits of the Debtor's tax identification number are 2673. The location of the Debtor's principal place of business and the Debtor's service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

[2] Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to such terms in the First Day Declaration.

(ii) authorizing, but not directing, the Debtor, in its sole discretion, to enter into and perform under other Postpetition Hedging Arrangements (as defined below) in the ordinary course and honor any obligations related thereto, (iii) modifying the automatic stay, and (iv) granting related relief.

JURISDICTION AND VENUE

2. The United States Bankruptcy Court for the District of Delaware (the "**Court**") has jurisdiction over this matter pursuant to 28 U.S.C. §§ 157 and 1334(b) and the *Amended Standing Order of Reference* from the United States District Court for the District of Delaware dated February 29, 2012 (the "**Standing Order**").

3. This is a core proceeding pursuant to 28 U.S.C. § 157(b)(2). Pursuant to Rule 9013-1(f) of the Local Rules of the United States Bankruptcy Court for the District of Delaware (the "**Local Rules**"), the Debtor consents to the entry of a final order by the Court in connection with this Motion to the extent that it is later determined that the Court, absent consent of the parties, cannot enter final orders or judgments in connection herewith consistent with Article III of the United States Constitution.

4. Venue is proper before the Court pursuant to 28 U.S.C. §§ 1408 and 1409.

5. The statutory and legal predicates for the relief requested herein are sections 105(a), 363(b), 363(c), 541(d), 546(e), 560, 1107(a), and 1108 of title 11 of the United States Code (the "**Bankruptcy Code**"), Rules 6003 and 6004 of the Federal Rules of Bankruptcy Procedure (the "**Bankruptcy Rules**"), and Local Rules 2002-1 and 9013-1.

BACKGROUND

A. General Background

6. On July 26, 2026 (the "**Petition Date**"), the Debtor commenced a voluntary case under chapter 11 of the Bankruptcy Code (the "**Chapter 11 Case**"). Pursuant to sections 1107(a)

and 1108 of the Bankruptcy Code, the Debtor continues to operate its business and manage its financial affairs as a debtor in possession.

7. As of the date hereof, no request for the appointment of a trustee or examiner has been made, nor has any statutory committee been appointed or designated, in the Chapter 11 Case.

8. The Debtor owns and operates a two-unit, 1,278-megawatt coal-fired power plant, together with related buildings, facilities, electrical generation infrastructure, and transmission powerlines, situated on approximately 190 acres of real property in Belmont, West Virginia (the "**Pleasants Power Station**"). The Pleasants Power Station operates within the PJM Interconnection, LLC ("**PJM**") market region to provide its customers with energy and power.

B. The Debtor's Prepetition Swap Arrangement

9. As is customary in the Debtor's industry, the Debtor's operations and revenue are exposed to significant risks arising from, among other things, volatility in power prices and production costs. In the ordinary course of its business, and consistent with industry practice, the Debtor continuously evaluates the best possible hedging transactions and arrangements to mitigate risk and protect the Debtor's cash flow. Importantly for a coal-fired power plant, there is significant operational cost (start costs, accelerated wear and tear) and reliability risk (thermal stress) from cycling a unit on and off, and a financial swap arrangement can be an effective means of keeping the unit(s) online and generating by mitigating the losses that might occur by keeping the plant running through periods of low prices that are below the cost of generating.

10. The Debtor's current hedging structure consists of a swap arrangement. Swaps are designed so that the Debtor can receive or make payment based on a differential between fixed and variable prices for electricity. On June 25, 2026, the Debtor entered into a two-month financial power price swap agreement (the "**Prepetition Swap Arrangement**"). Under the agreement, the

swap counterparty (the "**Prepetition Swap Counterparty**") pays the Debtor a fixed price per mega-watt hour, and the Debtor pays the Prepetition Swap Counterparty the actual PJM market price. The net difference is settled monthly, with exposure being calculated on a daily basis. The Prepetition Swap Arrangement became effective on July 1, 2026, and terminates on August 31, 2026.

11. The Prepetition Swap Arrangement helps stabilize the Debtor's operations and revenue, but it can also create a short-term liquidity need if market prices spike. Under the Prepetition Swap Arrangement, if the PJM market price rises above the fixed swap price, the Debtor may have to post cash collateral pursuant to the terms of the underlying agreement.[3]

12. Thus, the Debtor's and the Prepetition Swap Counterparty's obligations in connection with the Prepetition Swap Arrangement are intended to be secured. To the extent the Debtor or Prepetition Swap Counterparty has actually posted collateral under the Prepetition Swap Arrangement, the party receiving such collateral would subtract the value of such collateral from their margin calculation. These amounts are calculated daily, with collateral either being posted or returned, by one party to the other, as applicable for any outstanding exposures. The amount of credit support required to be posted by or to the Debtor to maintain the requisite credit standing and avoid default under the Prepetition Swap Arrangement is significantly influenced by the volatility of commodity prices. Such prices are directly influenced by various factors, including overall supply and demand, weather, supply disruptions, regulatory changes, and other factors.

[3] The Prepetition Swap Arrangement incorporates and supplements certain provisions from the form of Credit Support Annex published in 1994 by the International Swaps and Derivatives Association, Inc. ("**ISDA**"). ISDA publishes standard form agreements that govern all derivative contracts entered into between the Debtor and the respective counterparty. The Prepetition Swap Arrangement also incorporates the form of 2002 ISDA master agreement.

13. In addition to the above terms governing collateralization of the parties' obligations under the Prepetition Swap Arrangement, the Prepetition Swap Arrangement also provides certain thresholds for security and payment obligations. The Prepetition Swap Arrangement provides that no collateralization is necessary if the net obligation is below a certain amount, but the Prepetition Swap Counterparty may increase or decrease the Debtor's threshold in its sole discretion based on its ongoing credit evaluations of the Debtor, and if any default, potential default, or event of termination occurs, the threshold amount is set at zero. Further, the Prepetition Swap Arrangement provides for a minimum transfer amount for a transaction (*i.e.*, the amount of margin which shall be exceeded before margin must be paid or returned by either party).

14. The Debtor is currently negotiating an ISDA master agreement with the Prepetition Swap Counterparty which, once in effect, will govern hedging trades between the Debtor and the Prepetition Swap Counterparty. The Debtor and the Prepetition Swap Counterparty expect to finalize the ISDA master agreement in the near term.

15. Given exposure is calculated daily, during the Chapter 11 Case, certain amounts may come due under the Prepetition Swap Arrangement with the Prepetition Swap Counterparty in the ordinary course of business, which the Debtor would need to pay in the ordinary course.

16. Prior to entering into the Prepetition Swap Arrangement, the Debtor did not engage in any forward hedging activity. The Debtor did, however, participate (and continues to participate) in the PJM day-ahead market, in which the Debtor is required to offer and schedule energy in order to satisfy its obligations as a PJM capacity resource.

C. <u>The Postpetition Hedging Arrangements</u>

17. In addition to continuing to perform under the Prepetition Swap Arrangement, and given that the Prepetition Swap Arrangement terminates on August 31, 2026, the Debtor will

continue regularly evaluating potentially favorable hedging arrangements, including swaps, forwards, futures or option transactions, and anticipates negotiating and entering into additional arrangements on a rolling or seasonal basis (particularly during periods when the Debtor expects market prices to be most favorable) (the "**Postpetition Hedging Arrangements**"). The Debtor believes that there is a high likelihood that it will find other willing hedging counterparties on a postpetition basis (the "**Postpetition Hedging Counterparties**").

18. The Debtor has and will continue to employ a conservative hedging strategy, pursuant to which hedge transactions are selectively identified and executed in a manner that allows the Pleasants Power Station to capture economic benefit from the hedge transactions even if it is operating at roughly half of only one unit's capacity. These hedges and the Debtor's overall hedging strategy are designed to manage risk, not to speculate, help protect a steady cash flow outlook, and prevent the cycling of its units which can negatively impact the lifespan of parts.

BASIS FOR RELIEF

19. By this Motion, the Debtor requests entry of the Interim Order and Final Order (i) authorizing, but not directing, the Debtor, in its sole discretion, to (a) continue the Prepetition Swap Arrangement and honor any obligations related thereto, and (b) enter into and perform under new Postpetition Hedging Arrangements; (ii) modifying the automatic stay; and (iii) granting related relief.

A. The Prepetition Swap Arrangement May Be Entitled to Special Treatment Under the Bankruptcy Code

20. The Bankruptcy Code contains "safe harbor" provisions that govern certain hedging arrangements. Section 546(e) of the Bankruptcy Code provides a "safe harbor" protecting "settlement payments" made in connection with "swap agreements" from the trustee's avoidance powers. 11 U.S.C. § 546(e). Section 560 of the Bankruptcy Code specifically provides that a

swap participant's "right to cause the liquidation, termination, or acceleration of a swap agreement shall not be stayed, avoided, or otherwise limited by the automatic stay or any avoidance provision of the Bankruptcy Code." 11 U.S.C. § 560.

21. The Debtor believes that the Prepetition Swap Counterparty and any Postpetition Hedging Counterparties may be reluctant to continue trading with the Debtor without specific Court authorization. Such "safe harbor" provisions provide the Postpetition Hedging Counterparties with unique rights, and accordingly, the Debtor believes the Prepetition Swap Counterparty and any Postpetition Hedging Counterparty may prematurely seek to take adverse actions against the Debtor, whether or not the "safe harbor" provisions apply to the applicable hedging arrangement. Thus, the Debtor seeks express authority to continue to perform under the Prepetition Swap Arrangement in the ordinary course of business on a postpetition basis.

B. Section 363(c) of the Bankruptcy Code Authorizes the Debtor to Continue the Prepetition Swap Arrangement and Postpetition Hedging Arrangements, and Honor Related Obligations

22. Section 363(c)(1) of the Bankruptcy Code provides that a debtor in possession "may enter into transactions . . . in the ordinary course of business, without notice or a hearing, and may use property of the estate in the ordinary course of business without notice or a hearing." 11 U.S.C. § 363(c)(1). This standard is intended to afford a debtor in possession the flexibility to conduct its operations during chapter 11 proceedings. *In re Roth Am., Inc.*, 975 F.2d 949, 952 (3d Cir. 1992).

23. The Bankruptcy Code does not define "ordinary course of business," but courts apply two tests to make this determination: the "horizontal test," which focuses on how businesses operate within a given industry, and the "vertical test," which focuses on the reasonable expectations of creditors. *In re Roth Am., Inc.*, 975 F.2d at 952–53. Continuing the Prepetition

Swap Arrangement and allowing the Debtor to enter into Postpetition Hedging Arrangements satisfies both tests.

24. Under the horizontal test, hedging arrangements, including swaps, are standard and common among companies in the Debtor's industry. Accordingly, continuing the Prepetition Swap Arrangement and entering into Postpetition Hedging Arrangements, and the incurrence and payment of obligations thereunder, fall within the ordinary course practice of the Debtor's industry.

25. The Debtor likewise satisfies the vertical test. Creditors' reasonable expectations are based on the debtor's specific prepetition business practices and the expectation that the debtor will conform to those practices while operating as a debtor in possession. *In re Garofalo's Finer Foods, Inc.*, 186 B.R. 414, 425 (N.D. Ill. 1995); *see also In re Johns-Manville Corp.*, 60 B.R. 612, 617 (Bankr. S.D.N.Y. 1986).

26. Here, the Debtor will be operating consistently with widespread hedging practices in its industry and its conservative hedging approach. The Debtor's creditors expect that the Debtor will take steps to mitigate risks typically hedged in the industry, including price volatility. Courts in this and other jurisdictions have authorized debtors in commodities industries to continue or enter into similar hedging arrangements in the ordinary course of business. *See, e.g.*, *In re Extraction Oil & Gas, Inc.*, No. 20-11548 (CSS) (Bankr. D. Del. July 13, 2020) (granting authority to continue performing under prepetition hedging arrangements and authority to enter into and perform under postpetition hedging arrangements); *In re Whiting Petroleum Corp.*, No. 20-32021 (DRJ) (Bankr. S.D. Tex. May 30, 2020); *In re PES Holdings, LLC*, No. 18-10122 (KG) (Bankr. D. Del. Feb. 26, 2018) (same); *In re Samson Resources Corp.*, No. 15-11934 (CSS) (Bankr. D. Del. Jan. 27, 2017) (granting authority to enter into and continue hedging agreements); *In re Oasis*

Petroleum North America LLC, No. 20-34771 (MI) (Bankr. S.D. Tex. Sep. 30, 2020) (granting authority to continue performing under prepetition hedging arrangements and authority to enter into and perform under postpetition hedging arrangements).

27. Thus, continuing the Prepetition Swap Arrangement and entering into and performing under any Postpetition Hedging Arrangements is within the ordinary course of business and consistent with standard industry practice. The Debtor submits that the authority requested herein is appropriate and in the best interests of the Debtor, its estate, and all parties in interest in the Chapter 11 Case and should be permitted, without prior Court approval, pursuant to section 363(c)(1) of the Bankruptcy Code.

C. Continued Performance Under the Prepetition Swap Arrangement and Postpetition Hedging Arrangements, and Payment of Related Obligations, Are Sound Exercises of the Debtor's Business Judgment

28. In the event that the Prepetition Swap Arrangement or any Postpetition Hedging Arrangements implicate section 363(b) of the Bankruptcy Code, continuing the Prepetition Swap Arrangement and entering into Postpetition Hedging Arrangements would also constitute proper exercises of the Debtor's business judgment under section 363(b)(1). Section 363(b)(1) provides that a debtor "after notice and a hearing, may use, sell or lease, other than in the ordinary course of business, property of the estate." 11 U.S.C. § 363(b)(1). Courts generally require only that the debtor demonstrate a "sound business purpose" to justify such actions under section 363(b). *In re Montgomery Ward Holding Corp.*, 242 B.R. 147, 153 (D. Del. 1999) (internal citations omitted); *see also In re Elpida Memory, Inc.*, No. 12-10947 (CSS), 2012 WL 6090194, at *5 (Bankr. D. Del. Nov. 20, 2012) (stating that it is "well-settled" that a debtor may use its assets outside the ordinary course where such use "represents the sound exercise of business judgment."). Where the debtor articulates a reasonable basis for its business decisions, courts will generally not entertain

objections to the debtor's conduct. *In re Johns-Manville Corp.*, 60 B.R. at 616; *see also In re Tower Air, Inc.*, 416 F.3d 229, 238 (3d Cir. 2005).

29. A sound business purpose undoubtedly exists for the Debtor to continue the Prepetition Swap Arrangement and enter into Postpetition Hedging Arrangements because such arrangements help mitigate volatility in the Debtor's revenue and cash flow, support the Debtor's working capital, and ultimately enhance the value of the Debtor's estate in a conservative fashion for the benefit of all stakeholders. The relief sought in this Motion is intended to preserve the value of assets in the estate.

D. The Debtor Should Be Authorized to Pledge Collateral Under the Prepetition Swap Arrangement and Postpetition Hedging Arrangements

30. Because the Debtor's hedging arrangements may expose the Debtor and its counterparties to fluctuating obligations as market prices move, the Prepetition Swap Counterparty and Postpetition Hedging Counterparties may require credit support as a condition to continue or enter into such arrangements. In particular, the Debtor may be required to post cash collateral or deliver a letter of credit, subject to applicable exposure thresholds and minimum transfer amounts. Authority to satisfy these collateral and credit support requirements is not unduly burdensome on the Debtor, and they are necessary to preserve the benefits of the Debtor's hedging strategy. Therefore, the Debtor requests authority to pledge collateral under the Prepetition Swap Arrangement and any Postpetition Hedging Arrangements.

31. Courts in various jurisdictions have approved relief similar to the relief requested in this Motion. *See, e.g.*, *In re Energy Future Holdings Corp.*, No. 14-10979 (CSS) (Bankr. D. Del. Apr. 29, 2014); *In re Dynegy Holdings, LLC*, No. 11-38111 (Bankr. S.D.N.Y. Nov. 9, 2011); *In re Oasis Petroleum Inc.*, No. 20-34771 (MI) (Bankr. S.D. Tex. Sep. 30, 2020); *In re Extraction Oil & Gas, Inc.*, No. 20-11548 (Bankr. D. Del. June 15, 2020). The Debtor therefore believes that

the relief requested is appropriate and is in the best interests of the Debtor, its estate, and all parties in interest.

E. <u>The Automatic Stay Should be Modified on a Limited Basis</u>

32. To provide assurance to the Prepetition Swap Counterparty and any Postpetition Hedging Counterparties that the Debtor will continue to perform under the applicable hedging arrangements notwithstanding the pendency of the Chapter 11 Case, the Debtor respectfully requests that the Court grant relief from the automatic stay to the extent necessary to allow such counterparties the benefits of the transactions, including through the exercise of any applicable contractual remedies.

33. Section 362(d)(1) of the Bankruptcy Code provides that "[o]n request of a party in interest and after notice and a hearing, the court shall grant relief from the stay . . . such as by terminating, annulling, modifying, or conditioning such stay –(1) for cause . . . ." 11 U.S.C. § 362(d)(1). The Bankruptcy Code does not define "cause." Rather, whether "cause" exists to lift the automatic stay should be determined on a case-by-case basis. *See Izzarelli v. Rexene Prods. Co. (In re Rexene Prod. Co.)*, 141 B.R. 574, 576 (Bankr. D. Del. 1992).

28. The Debtor seeks modification of the automatic stay provisions of section 362 of the Bankruptcy Code, solely to the extent necessary for the Prepetition Swap Counterparty and Postpetition Hedging Counterparties to exercise and enforce their rights and remedies under the Prepetition Swap Arrangement and Postpetition Hedging Arrangements, as applicable, including upon the occurrence of an event of default or termination event thereunder. Cause exists to modify the automatic stay because, absent such relief, the Prepetition Swap Counterparty and any Postpetition Hedging Counterparties may not be willing to engage in hedging arrangements with the Debtor, thereby depriving the Debtor of the ability to mitigate the impact of price volatility on its business and protect its cash flow. Such relief will provide assurance to the Prepetition Swap

Counterparty and any Postpetition Hedging Counterparties that the Debtor will continue to perform under any hedging arrangements notwithstanding the pendency of the Chapter 11 Case.

29. In the Debtor's business judgment, the stay modification is measured, reasonable and fair under the circumstances in the Chapter 11 Case and necessary to protect the Debtor's ability to continue engaging in hedging transactions postpetition. The Debtor therefore respectfully requests that the Court modify the automatic stay to the extent contemplated by the Interim Order and the Final Order.

IMMEDIATE RELIEF IS JUSTIFIED

30. Pursuant to Bankruptcy Rule 6003, the Court may grant relief within twenty-one (21) days after the filing of the petition if "relief is needed to avoid immediate and irreparable harm." Fed. R. Bankr. P. 6003(a). The Debtor believes an immediate and orderly transition into chapter 11 is critical to the viability of its operations, and any delay in granting the relief requested herein could hinder the Debtor's operations and restructuring efforts and threaten the Debtor's viability as a going concern. Accordingly, the Debtor respectfully requests that the Court grant the relief requested in this Motion on an emergency basis.

REQUEST FOR WAIVER OF STAY

31. The Debtor also requests that the Court waive the fourteen (14)-day stay imposed by Bankruptcy Rule 6004(h). The relief sought in this Motion is necessary for the Debtor to operate its business without interruption and to preserve value for its estate, and the exigent nature of the relief justifies immediate effectiveness.

32. To implement the foregoing immediately, the Debtor respectfully requests a waiver of the notice requirements of Bankruptcy Rule 6004(a) to the extent they are deemed to apply.

RESERVATION OF RIGHTS

33. Nothing contained in this Motion or any order granting the relief requested in this Motion, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with any such order), is intended as or shall be construed or deemed to be: (a) an admission as to the amount of, basis for, or validity of any claim against the Debtor under the Bankruptcy Code or other applicable non-bankruptcy law; (b) a waiver of the Debtor's or any other party in interest's right to dispute any claim on any grounds; (c) a promise or requirement to pay any particular claim; (d) an implication, admission, or finding that any particular claim is an administrative expense claim, other priority claim, or otherwise of a type specified or defined in this Motion or any order granting the relief requested by this Motion; (e) a request or authorization to assume, adopt, or reject any agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) an admission as to the validity, priority, enforceability, or perfection of any lien on, security interest in, or other encumbrance on property of the Debtor's estate; (g) a waiver or limitation of any claims, causes of action, or other rights of the Debtor or any other party in interest against any person or entity under the Bankruptcy Code or any other applicable law; or (h) create any rights in favor of, or enhance the status or nature of any claim held by, any person. If the Court grants the relief sought herein, any payment made pursuant to the Court's order is not intended and should not be construed as an admission as to the validity of any particular claim or a waiver of the Debtor's rights to subsequently dispute such claim.

NOTICE

34. Notice of the Motion will be given to the following parties or their respective counsel, as applicable: (i) the U.S. Trustee;; (ii) the parties included on the Debtor's list of thirty (30) largest unsecured creditors; (iii) the West Virginia Economic Development Authority;

(iv) TRAG LLC and RG Energy LLC; (v) the United States Attorney's Office for the District of Delaware; (vi) the attorneys general for the State of West Virginia; (vii) the United States Department of Justice; (viii) the Internal Revenue Service; (ix) the Prepetition Swap Counterparty; and (x) all parties requesting notice pursuant to Bankruptcy Rule 2002. Notice of this Motion and any order entered hereon will be served in accordance with Bankruptcy Rule 2002 and Local Rule 9013-1(m). In light of the nature of the relief requested herein, the Debtor submits that due and proper notice has been given under the circumstances and that no other or further notice is necessary.

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CONCLUSION

WHEREFORE, the Debtor respectfully requests entry of the Interim Order and Final Order, substantially in the forms attached hereto as **Exhibit A-1** and **Exhibit A-2**, (a) granting the relief requested herein and (b) granting such other relief as the Court may deem just and appropriate under the circumstances.

Date: July 27, 2026

/s/ S. Alexander Faris

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**Pending Admission Pro Hac Vice*

Proposed Co-Counsel to the Debtor and Debtor in Possession

<u>EXHIBIT A-1</u>

Proposed Interim Order

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re:	)	Chapter 11
	)	
Omnis Pleasants, LLC[1]	)	Case No. 26- 11169 (___)
	)	
Debtor.	)	**Ref. Docket No. ___**

INTERIM ORDER (I) AUTHORIZING THE DEBTOR TO CONTINUE PREPETITION HEDGING ARRANGEMENT AND HONOR ANY OBLIGATIONS RELATED THERETO, (II) AUTHORIZING THE DEBTOR TO ENTER INTO, AND PERFORM UNDER, POSTPETITION HEDGING ARRANGEMENTS, (III) MODIFYING THE AUTOMATIC STAY, AND (IV) GRANTING RELATED RELIEF

Upon the motion (the "**Motion**")[2] of the Debtor seeking entry of an order (this "**Interim Order**") (i) authorizing the Debtor to continue performing under prepetition hedging agreements and honor obligations related thereto, (ii) authorizing the Debtor to enter into, and perform under, postpetition hedging arrangements, (iii) modifying the automatic stay, and (iv) granting related relief; and this Court having found that it has jurisdiction over this matter pursuant to 28 U.S.C. §§ 1334(b) and 157, and the Standing Order; and this Court having found that venue of the Chapter 11 Case and the Motion in this District is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that this matter is a core proceeding pursuant to 28 U.S.C. § 157(b); and this Court having found that due and proper notice of the Motion has been given, and that no other or further notice is required or necessary under the circumstances; and this Court having determined that it may enter an interim order consistent with Article III of the United States Constitution; and

[1] The last four digits of the Debtor's tax identification number are 2673. The location of the Debtor's principal place of business and the Debtor's service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

[2] Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in the Motion.

upon consideration of the First Day Declaration; and upon the record in the Chapter 11 Case and the proceedings had before this Court; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court; and this Court having found and determined that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** on an interim basis as set forth herein.

2. All objections to entry of this Interim Order, to the extent not withdrawn or settled, are overruled.

3. The final hearing (the "**Final Hearing**") on the Motion shall be held on _________, 2026, at _____, prevailing Eastern Time. Any objections or responses to entry of a final order on the Motion shall be filed with the Court, and served so as to be received by the following parties, by no later than 4:00 p.m., prevailing Eastern Time, on _________, 2026: (i) proposed co-counsel to the Debtor, Young Conaway Stargatt & Taylor, LLP, Rodney Square, 1000 North King Street, Wilmington, Delaware 19801, Attn: Andrew L. Magaziner (amagaziner@ycst.com), Robert F. Poppiti, Jr. (rpoppiti@ycst.com), and S. Alexander Faris (afaris@ycst.com); and Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036 (Attn: Alexander Woolverton (Alexander.Woolverton@hsfkramer.com), Brian F. Shaughnessy (Brian.Shaughnessy@HSFKramer.com), Andrew Pollack (Andrew.Pollack@HSFKramer.com), and Jared C. Borriello (Jared.Borriello@HSFKramer.com); (ii) counsel to TRAG LLC and RG Energy LLC, DLA Piper LLP (US), 1201 North Market Street, Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com); and 500 Eighth Street NW,

Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iii) Office of the United States Trustee for the District of Delaware, Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov), the Office of the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801; and (iv) if any statutory committee has been appointed in the Chapter 11 Case, counsel to such committee. If no objections to the entry of the Final Order are timely filed, this Court may enter the Final Order without further notice or a hearing.

4. The Debtor is authorized, but not directed, in its sole discretion, to: (a) continue performing under the Prepetition Swap Arrangement and honor, pay, or otherwise satisfy any obligations related thereto; and (b) negotiate, enter into, and perform under postpetition hedging arrangements in the ordinary course of business and consistent with industry practice.

5. The Debtor is authorized, but not directed, to (i) exercise and enforce any and all rights and remedies provided for in the Prepetition Swap Arrangement and the Postpetition Hedging Arrangements, including but not limited to rights and remedies relating to the suspension of performance thereunder, the termination, liquidation, or acceleration thereof, and (ii) monetize or otherwise dispose of any hedging arrangement.

6. If (i) there exists an outstanding postpetition balance due from the Debtor to a Prepetition Swap Counterparty and (ii) such Prepetition Swap Counterparty does not perform under the Prepetition Swap Arrangement on a postpetition basis or otherwise exercises valid and enforceable termination rights under sections 555, 556, 559, 560, and 561 of the Bankruptcy Code with respect to the Prepetition Swap Arrangement, then the Debtor may, in its sole discretion, elect to recharacterize and apply any payments made pursuant to this Interim Order to such postpetition balance. To the extent such payments or collateral exceed the postpetition obligations then

outstanding, the Prepetition Swap Counterparty shall immediately repay such excess amounts in cash to the Debtor and, as applicable, return any posted collateral. The Prepetition Swap Counterparty shall have no claim, setoff right, or recoupment right arising from such repayment or return of collateral.

7. The Debtor's banks and financial institutions shall be, and hereby are, authorized, when requested by the Debtor in its sole discretion, to process, honor, pay, and, if necessary, reissue any and all checks, including prepetition checks that the Debtor reissues postpetition, and electronic fund transfers drawn on the Debtor's bank accounts relating to those Prepetition Swap Arrangements whose payment is approved by this Interim Order, whether such checks were presented or fund transfer requests were submitted prior to or subsequent to the Petition Date, provided that sufficient funds are available in the applicable accounts to make the payments.

8. Nothing contained in the Motion or this Interim Order, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with this Interim Order), is intended as or shall be construed or deemed to be: (a) an admission as to the amount of, basis for, or validity of any claim against the Debtor under the Bankruptcy Code or other applicable nonbankruptcy law; (b) a waiver of the Debtor's or any other party in interest's right to dispute any claim on any grounds; (c) a promise or requirement to pay any particular claim; (d) an implication, admission, or finding that any particular claim is an administrative expense claim, other priority claim, or otherwise of a type specified or defined in the Motion or this Interim Order; (e) a request or authorization to assume, adopt, or reject any agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) an admission as to the validity, priority, enforceability, or perfection of any lien on, security interest in, or other encumbrance on property of the Debtor's estate; (g) a waiver or limitation of any claims, causes of action, or other rights of the Debtor or

any other party in interest against any person or entity under the Bankruptcy Code or any other applicable law; or (h) create any rights in favor of, or enhance the status or nature of any claim held by, any person.

9. The Debtor is authorized, but not directed, to issue postpetition checks, or to effect postpetition fund transfer requests, in replacement of any checks or fund transfer requests that are dishonored as a consequence of the Chapter 11 Case with respect to prepetition amounts owed in connection with the relief granted herein and to the extent authorized by this Interim Order.

10. To the extent necessary, the automatic stay provided in section 362 of the Bankruptcy Code is modified to permit the Prepetition Swap Counterparty and any Postpetition Hedging Counterparty to perform its obligations and exercise its rights under the applicable hedging arrangement.

11. Notwithstanding entry of this Interim Order, nothing herein shall create, nor is intended to create, any rights in favor of or enhance the status of any claim held by or right, including any contractual rights, of any party.

12. The requirements of Bankruptcy Rule 6003(b) are satisfied because the relief set forth in this Interim Order is necessary to avoid immediate and irreparable harm.

13. Notice of the Motion as provided therein shall be deemed good and sufficient notice thereof and the requirements of Bankruptcy Rule 6004(a) and the Local Rules are satisfied by such notice.

14. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case, the "**Adequate Protection Order**"), including any budget in connection therewith (the "**Budget**")

and (b) to the extent there is any inconsistency between the Adequate Protection Order and the terms of this Interim Order, the terms of the Adequate Protection Order, including the Budget, shall control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

15. Notwithstanding Bankruptcy Rule 6004(h), the terms and conditions of this Interim Order shall be immediately effective and enforceable upon its entry.

16. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Interim Order.

17. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, or enforcement of this Interim Order.

EXHIBIT A-2

Proposed Final Order

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re:	)	Chapter 11
Omnis Pleasants, LLC[1]	)	Case No. 26- 11169 (___)
Debtor.	)	**Ref. Docket Nos. __ & __**

FINAL ORDER (I) AUTHORIZING THE DEBTOR TO CONTINUE PREPETITION HEDGING ARRANGEMENT AND HONOR ANY OBLIGATIONS RELATED THERETO, (II) AUTHORIZING THE DEBTOR TO ENTER INTO, AND PERFORM UNDER, POSTPETITION HEDGING ARRANGEMENTS, (III) MODIFYING THE AUTOMATIC STAY, AND (IV) GRANTING RELATED RELIEF

Upon the motion (the "**Motion**")[2] filed by the above-captioned debtor and debtor in possession (the "**Debtor**") seeking entry of an order (this "**Final Order**") (i) authorizing the Debtor to continue the Prepetition Swap Arrangement and honor any obligations related thereto, (ii) authorizing the Debtor to enter into, and perform under, postpetition hedging arrangements, (iii) modifying the automatic stay, and (iv) granting related relief; and this Court having found that it has jurisdiction over this matter pursuant to 28 U.S.C. §§ 1334(b) and 157, and the Standing Order; and this Court having found that venue of the Chapter 11 Case and the Motion in this District is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that this matter is a core proceeding pursuant to 28 U.S.C. § 157(b); and this Court having found that due and proper notice of the Motion has been given, and that no other or further notice is required or necessary under the circumstances; and this Court having determined that it may enter a final order consistent with Article III of the United States Constitution; and upon consideration of the First

[1] The last four digits of the Debtor's tax identification number are 2673. The location of the Debtor's principal place of business and the Debtor's service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

[2] Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in the Motion.

Day Declaration; and upon the record in the Chapter 11 Case and the proceedings had before this Court; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court, if any; and this Court having found and determined that the relief sought in the Motion is in the best interests of the Debtor, its estate, its creditors, and all other parties in interest; and that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** on a final basis as set forth herein.

2. All objections to the entry of this Final Order, to the extent not withdrawn or settled, are overruled.

3. The Debtor is authorized, but not directed, in its sole discretion, to: (a) continue performing under the Prepetition Swap Arrangement and honor, pay, or otherwise satisfy any obligations related thereto; and (b) negotiate, enter into, and perform under postpetition hedging arrangements in the ordinary course of business and consistent with industry practice.

4. The Debtor is authorized, but not directed, to (i) exercise and enforce any and all rights and remedies provided for in the Prepetition Swap Arrangement and the Postpetition Hedging Arrangements, including but not limited to rights and remedies relating to the suspension of performance thereunder, the termination, liquidation, or acceleration thereof, and (ii) act to monetize or otherwise dispose of any hedging arrangement.

5. If (i) there exists an outstanding postpetition balance due from the Debtor to a Prepetition Swap Counterparty and (ii) such Prepetition Swap Counterparty does not perform under the Prepetition Swap Arrangement on a postpetition basis or otherwise exercises valid and

enforceable termination rights under sections 555, 556, 559, 560, and 561 of the Bankruptcy Code with respect to the Prepetition Swap Arrangement, then the Debtor may, in its sole discretion, elect to recharacterize and apply any payments made pursuant to this Final Order to such postpetition balance. To the extent such payments or collateral exceed the postpetition obligations then outstanding, the Prepetition Swap Counterparty shall immediately repay such excess amounts in cash to the Debtor and, as applicable, return any posted collateral. The Prepetition Swap Counterparty shall have no claim, setoff right, or recoupment right arising from such repayment or return of collateral.

6. The Debtor's banks and financial institutions shall be, and hereby are, authorized, when requested by the Debtor in its sole discretion, to process, honor, pay, and, if necessary, reissue any and all checks, including prepetition checks that the Debtor reissues postpetition, and electronic fund transfers drawn on the Debtor's bank accounts relating to those Prepetition Swap Arrangements whose payment is approved by this Final Order, whether such checks were presented or fund transfer requests were submitted prior to or subsequent to the Petition Date, provided that sufficient funds are available in the applicable accounts to make the payments.

7. Nothing contained in the Motion or this Final Order, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with this Final Order), is intended as or shall be construed or deemed to be: (a) an admission as to the amount of, basis for, or validity of any claim against the Debtor under the Bankruptcy Code or other applicable non-bankruptcy law; (b) a waiver of the Debtor's or any other party in interest's right to dispute any claim on any grounds; (c) a promise or requirement to pay any particular claim; (d) an implication, admission, or finding that any particular claim is an administrative expense claim, other priority claim, or otherwise of a type specified or defined in the Motion or this Final Order;

(e) a request or authorization to assume, adopt, or reject any agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) an admission as to the validity, priority, enforceability, or perfection of any lien on, security interest in, or other encumbrance on property of the Debtor's estate; (g) a waiver or limitation of any claims, causes of action, or other rights of the Debtor or any other party in interest against any person or entity under the Bankruptcy Code or any other applicable law; or (h) create any rights in favor of, or enhance the status or nature of any claim held by, any person.

8. The Debtor is authorized, but not directed, to issue postpetition checks, or to effect postpetition fund transfer requests, in replacement of any checks or fund transfer requests that are dishonored as a consequence of the Chapter 11 Case with respect to prepetition amounts owed in connection with the relief granted herein and to the extent authorized by this Final Order.

9. To the extent necessary, the automatic stay provided in section 362 of the Bankruptcy Code is modified to permit the Prepetition Swap Counterparty and any Postpetition Hedging Counterparty to perform its obligations and exercise its rights under the applicable hedging arrangement.

10. Notice of the Motion as provided therein shall be deemed good and sufficient notice thereof and the requirements of Bankruptcy Rule 6004(a) and the Local Rules are satisfied by such notice.

11. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case, the "**Adequate Protection Order**"), including any budget in connection therewith (the "**Budget**") and (b) to the extent there is any inconsistency between the Adequate Protection Order and the

terms of this Final Order, the terms of the Adequate Protection Order, including the Budget, shall control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

12. Notwithstanding Bankruptcy Rule 6004(h), the terms and conditions of this Final Order shall be immediately effective and enforceable upon its entry.

13. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Final Order.

14. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, and enforcement of this Final Order.